Attachment 8

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

I, _____(name), _____(title), and in exchange for good and valuable consideration which is hereby acknowledged as received, acknowledges and accepts that, in performance of all work under the terms of this Agreement, during their work on behalf of DHS, may have access to Confidential Information, that may be owned or controlled by the City and County of Denver, the State of Colorado, and persons who receive benefits or other support from DHS, and that the unauthorized disclosure of any Confidential Information may be damaging to the City and County of Denver, DHS, State of Colorado, and persons who receive benefits or support from DHS, or third parties, and access to secure key card access areas of the Richard T. Casto building for which there is a business need to access.

1. Confidential Information. "Confidential Information" means any non-public information in possession of or acquired by during their work on behalf of DHS, and owned or controlled by the City and County of Denver, or State of Colorado, whether disclosed by oral, written, electronic, or other form, and whether or not marked or identified as "confidential." By this agreement, "confidential information" includes information that relates, in any way, to the City and County of Denver's:
   a. past, present, and future business affairs including finances, products, services, organizational structure, internal practices , forecasts, and sales;
   b. unpatented inventions, ideas, methods and discoveries, trade secrets, know-how and other confidential intellectual property;
   c. software, designs, specifications, documentation, components, reports, data, analyses, notes, summaries, interpretations, source code, object code, images, icons, audiovisual components and objects, schematics, drawings, protocols, processes, and other visual depictions, in whole or in part;
   d. information that is not subject to disclosure pursuant to the Colorado Open Records Act, § 24-72-201, et seq., C.R.S. (2003), or city ordinance; and,
   e. provision of benefits or other support services by DHS and any client's protected health information, personally identifiable information, and other confidential client information.

2. Authorized Disclosure. By this agreement, the City and County of Denver authorizes its confidential information to be disclosed only to those whose duties and responsibilities require knowledge of the City and County of Denver's confidential information. Those employees and authorized persons include only:
   a. None
3. Notice of Disclosure. you will not disclose the City and County of Denver's Confidential Information to any of its unauthorized employees, partners, shareholders, contractors, affiliates, consultants, agents, or any third parties.

4. Authorized Use. You acknowledge that by providing confidential information, the City and County of Denver is not granting to you any right or license to use such confidential information except as provided in this Agreement.

5. You agree that all confidential information, belonging to, or controlled by, the City and County of Denver, the State of Colorado, and persons who receive benefits or other support from DHS, given to or obtained by you during the course of their work for DHS will not be:
    a. disclosed, disseminated, transmitted, licensed, sublicensed, assigned, leased, released, published, posted on the internet, transferred, sold, permitted access to, distributed, or allowed interactive rights to, or otherwise made available to any unauthorized person or entity in any part or form;
    b. used for any purpose unrelated to your obligations under this contract; or,
    c. referenced to, or caused to be made reference to, in any statement or announcement.

This section will apply to any confidential information made available to, or taken from through the illegal or unauthorized means of third parties.

6. Duty to Protect Confidential Information. You must protect and safeguard the confidentiality of the City and County of Denver's Confidential Information with at least the same degree of care as you would protect its own Confidential Information, but in no event with less than a commercially reasonable degree of care.

You must develop, implement, maintain and use appropriate administrative, technical and physical security measures to preserve the confidentiality, integrity and availability of all physically and electronically maintained or transmitted Confidential Information owned or controlled by the City and County of Denver.

You agree that it is responsible for ensuring that all possible measures have been taken to secure the computers or any other storage devices used for City and County of Denver's Confidential Information. This includes industry accepted firewalls, up-to-date anti-virus software, controlled access to the physical location of the hardware itself.

7. Limitations on Authorized Use. With respect to the City and County of Denver's Confidential Information, you must:
    a. not copy, recreate, reverse engineer, decompile, or make any derivative works of such Confidential Information, in whole or in part, unless authorized in writing by the Executive Director;
    b. not retain copies, recreations, compilations, or de-compilations, in whole or in part, of such Confidential Information beyond the term of this work;
    c. destroy or return all Confidential Information or work products incorporating such Confidential Information, in any existing form, upon the expiration or earlier termination of the Agreement; and,
    d. certify the return or destruction of such Confidential Information in writing.

8. Disclaimer. Notwithstanding any other provision of this Agreement, the City and County of Denver is furnishing Confidential Information on an "as is" basis, without any support whatsoever, and without representation, warranty or guarantee, including but not in any manner limited to, fitness, merchantability or the accuracy and completeness of the Proprietary Data or

confidential information. Contractor is hereby advised to verify its work. The City and County of Denver assumes no liability for any errors or omissions herein. Specifically, the City and County of Denver is not responsible for any costs including, but not limited to, those incurred as a result of lost revenues, loss of use of data, the costs of recovering such programs or data, the cost of any substitute program, claims by third parties, or for similar costs. If discrepancies are found, you must provide notice to the City and County of Denver immediately.

9. Indemnification. Any unauthorized disclosure or use of the City and County of Denver's Confidential Information by you to whom the City and County of Denver's Confidential Information was disclosed as required by this agreement, is a breach of this agreement.

You agree to indemnify any employee, partner, shareholder, contractor, affiliate, consultant, agent, or third party that breaches this agreement.

10. Remedies. For purposes of this section, the term "irreparable harm" will be interpreted to include any harm suffered that cannot be corrected through monetary compensation and any irreversible harm that results from the unauthorized disclosure of confidential information.

By this agreement, you are on notice that any breach of this agreement will cause the City and County of Denver to be immediately and irreparably harmed.

In addition to any other remedies available, the City and County of Denver may seek an injunction to prevent a breach and compel specific performance of this agreement. Any injunction sought by the City and County of Denver will not require notice and will not require posting bond.

_____
Signature of DHS visitor

_____
Printed Name/Title

_____
Date